

9:00 AM

Line 3

22-CIV-00069 MARITA ZWEIFLER VS. ERNEST EGAN, ET AL

MARITA ZWEIFLER
ERNEST EGAN

PRO SE
JOEL M. WESTBROOK

Plaintiff's Motion to Vacate the November 14, 2025 Order Setting Aside Default Judgment

TENTATIVE RULING:

Plaintiff Marita Zweifler's ("Zweifler") Motion to Vacate the November 14, 2025 Order Setting Aside Default Judgment is DENIED.

Plaintiff's only legal basis for this motion is under Code of Civil Procedure ("CCP") Section 473(d), which provides:

The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.
CCP § 473(d)

Plaintiff then goes on to re-argue the merits of the past motion to set aside default that was heard on November 14, 2025. At the time Zweifler was represented by attorney Nathaniel Kelly who filed a written opposition to the motion on October 31, 2025. In other words, the motion was fully briefed on both sides, the Court had issued its tentative ruling to grant, Mr. Kelly did not oppose the tentative and it was then adopted without argument. See, Minute Order 11/14/2025. In all respects, Zweifler's current motion is an untimely motion for reconsideration which is only allowed within 10 days after service of written notice of entry of an order. CCP § 1008(a). Here the Court filed and served the Order granting the motion to set aside default on December 2, 2025. See, Order and Affidavit of Service, 12/2/2025. Zweifler then filed this motion on July 14, 2026, some seven months too late. It is thus procedurally DENIED as improper and untimely.

On the merits, Zweifler also does not present any good cause for the Court to reconsider its prior ruling. Again, the prior motion was fully briefed and then adjudicated. There was no clerical mistake in its entry under CCP Section 473(d) that needs correction. Thus, substantively, the motion is also DENIED.

Defendant's request discretionary sanctions under CCP Section 1008(d), however, that section allows the Court the option to seek contempt proceedings with sanctions. Though the Court does agree that this motion is meritless, the Court does not find it contemptuous and therefore no sanctions are awarded.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 4

24-CIV-04638 RAMY KAUFLEDER EDEN VS. GRAND MARTCO, INC.,

RAMY KAUFLEDER EDEN
GRAND MARTCO, INC.,

JARRETT CHARO
DONALD J. DOWLING

Plaintiff's Motion for Settlement Approval

TENTATIVE RULING:

The Motion for Settlement Approval by Plaintiff Ramy Kaufler Eden ("Plaintiff") is continued for one week to September 11, 2026 at 9:00 a.m. for Plaintiff to cure the defects identified below. Due to the continuance, no appearances are needed on September 4, 2026.

The proof of service that is attached to the Notice of Motion and Motion for Settlement Approval, filed on February 23, 2026, is unsigned. The Motion is required to be served not only on Defendant, but also the Attorney General. (Cal. Code Regs, tit. 11, § 3008 [in a private Proposition 65 action, motion and supporting papers must be served on the California Attorney General at least forty-five days prior to the hearing on the motion]; Health and Safety Code, § 25249.7, subd. (f)(5) [plaintiff shall serve motion and all supporting papers on the Attorney General, who may appear and participate in a proceeding without intervening in the case].) Therefore, Plaintiff has not established proper service of this Motion. This defect can be cured by submitting a signed Proof of Service.

The Notice of Hearing also fails to provide the correct date and location of the hearing. At the time of filing, the hearing date on the Notice of Motion was changed from July 10, 2026 to September 4, 2026. The court's record does not reflect the filing or service of an amended notice. Further, the Notice of Hearing incorrectly provided the address for the Southern Branch courthouse in Redwood City. At the time Plaintiff filed this Motion, Department 20 was located at the Central Branch. On April 29, 2026, the court served counsel of record with a Notice of Hearing Location Change for the September 4, 2026 hearing stating that Department 20 is now located at the Northern Branch. The address for the Northern Branch is 1050 Mission Road, South San Francisco, CA 94080. Even if the court were to find that Defendant has notice of the date and location of the hearing as a result of service of the Notice of Hearing Location Change, Plaintiff has not shown the California Attorney General has notice of the correct date and location of the hearing. This defect can be cured by filing and serving an Amended Notice of Hearing on Continued Motion for Settlement Approval, with a signed Proof of Service for service on Defendant and on the Attorney General.

The Court waives an Order after Hearing, and instead the Minute Order will reflect this ruling.
